



NEW MEXICO ASSOCIATION OF REALTORS® —2025
ADDENDUM NO. _____
BUYER'S SALE CONTINGENCY ADDENDUM



INTENDED PURPOSE. This form is intended to be used under the following circumstances: (1) the Buyer is making an offer on the Seller's property; and (2) the Buyer is attempting to sell his/her existing property; 3) the Buyer is making his offer to purchase Seller's property subject to the sale, closing and funding of his property; and 4) the Seller agrees to **discontinue** **MLS** marketing of his property once the Buyer's property goes under contract.

As used in this agreement to describe the contingency, the term "satisfies" and any variation thereof means that the Buyer's property has closed and funded and the term "waives" and any variation thereof means that it is no longer necessary for the Buyer to sell his property in order to purchase the Seller's property. In other words, if the Buyer "waives" this Contingency, the Buyer is no longer making the purchase of the Seller's property contingent on the Buyer first selling his own property.

The following agreement is an Addendum to the Purchase Agreement dated _____ between _____ ("Buyer") and _____ ("Seller") relating to the following real estate: _____ ("Subject Property"), hereinafter referred to as the "Purchase Agreement".

1. **CONTINGENCY:** The Purchase Agreement is subject to the sale, closing and funding of Buyer's property located at: _____ ("Buyer's Property").
2. **MARKETING PERIOD AND CONTINGENCY DEADLINE.**
 - A. **MARKETING CONTINUES.** Seller shall have the right to offer the Subject Property for sale and to consider additional offers until Buyer delivers written notice to Seller that Buyer has entered into a contract for the sale of Buyer's Property ("Marketing Period").
 - i. Buyer may notify Seller by (Check all that apply) ☐ email ☐ text ☐ hand-delivery ☐ other _____ that Buyer has entered into a contract for the sale of Buyer's Property ("Notification").
 - ii. With the Notification, Buyer ☐ will ☐ will not attach a copy of the purchase agreement.
 - iii. Notwithstanding the foregoing, if the Property was marketed through the MLS, the MLS listing is subject to MLS Rules, including but not limited to, any rule dictating the MLS status for properties that are "under contract."
 - B. **CONTINGENCY DEADLINE.** In the event Seller receives another acceptable offer to purchase the Subject Property during the Marketing Period, Seller shall deliver written notification (Notification to Satisfy or Waive Contingency, Page 4 of this Agreement) to the Buyer that this Contingency must be satisfied or waived within _____ hours of receipt of such notification ("Contingency Deadline"). If Buyer does not satisfy or waive this Contingency by the Contingency Deadline, this Purchase Agreement shall terminate and any Earnest Money ☐ will ☐ will not be refunded to Buyer. If the Contingency Deadline falls on a weekend or legal holiday, the Contingency Deadline shall **NOT** be extended to the next business day.
3. **TERMINATION OF MARKETING PERIOD.** Once Seller receives notice from Buyer that Buyer has entered into a contract for the sale of Buyer's Property, the Marketing Period ends. Nothing herein prohibits Seller from accepting Back-Up Contracts on the Subject Property once the Marketing Period ends. The Purchase Agreement shall remain contingent upon the closing and funding of Buyer's Property.
4. **TERMINATION OF CONTRACT ON BUYER'S PROPERTY.** In the event Buyer has entered into a contract for the sale of Buyer's Property and that contract subsequently terminates for any reason, Buyer must notify Seller of such termination within _____ days of such termination. In this event, Buyer shall have the option of waiving the contingency; however, if Buyer is unwilling or unable to waive the contingency at the time he provides notice to Seller, then Seller, in his sole discretion, may terminate the Purchase Agreement.
 - A. **NOTICE.** If Seller elects to terminate, Seller shall deliver written notice to Buyer **within** _____ days of receiving Buyer's notice of the termination of the contract on Buyer's Property and Earnest Money will be refunded to Buyer. If Seller fails to timely notify Buyer of Seller's intent to terminate, Seller's right to terminate shall be deemed waived.

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- B. MARKETING RESUMES.** If Seller elects **not** to terminate the Purchase Agreement or **waives** his right to terminate the Purchase Agreement by failing to timely respond to Buyer's notice (Para. 4(A)), Seller may resume marketing of the Subject Property until such time as Buyer notifies Seller that Buyer has entered into another contract for the sale of Buyer's Property ("Subsequent Marketing Period"). In the event Seller receives another acceptable offer to purchase the Subject Property during the Subsequent Marketing Period, Seller shall deliver written notification (Notification to Satisfy or Waive Contingency, Page 4 of this Agreement) to the Buyer that this Contingency must be satisfied or waived by the Contingency Deadline (Para. 2(B)). If Buyer does not satisfy or waive this Contingency by the Contingency Deadline, this Purchase Agreement shall terminate and any Earnest Money shall be distributed as provided in Para. 2(B).
- 5. TIME FOR SATISFACTION OR WAIVER OF CONTINGENCY.** Without any notice or demand, Buyer shall notify Seller in writing on or before _____ ("Contingency Date") that this Contingency has been satisfied or waived. If Buyer does not satisfy or waive this Contingency by the Contingency Date, this Purchase Agreement shall terminate and any Earnest Money ☐ will ☐ will not be refunded to Buyer.
Note: the fact the Buyer has entered into a contract for the sale of Buyer's Property is neither a satisfaction, nor a waiver of the contingency (see definitions of "satisfaction" and "waiver" in the introductory paragraph) and this paragraph shall apply even if Buyer has entered into a contract for the sale of Buyer's Property.
- 6. BUYER REPRESENTATIONS:**
- A.** ☐ Buyer's Property is for sale.
- i.** Buyer's Property is listed with _____ (Broker's name) of _____ Brokerage.
- ii.** Buyer's Property ☐ is ☐ is not currently listed with a MLS. If currently listed in the MLS, the MLS listing number is _____.
- iii.** Buyer's Property has been on the market since _____.
- B.** ☐ Buyer's Property is not yet for sale.
- i.** Buyer ☐ will ☐ will not list Buyer's Property with a licensed real estate broker within _____ days from Date of Acceptance. If Buyer will be listing Buyer's Property with a licensed real estate broker, Buyer will deliver proof of this listing to Seller within _____ days from Date of Acceptance. If Buyer fails to deliver proof of said listing, the Purchase Agreement shall terminate and any Earnest Money deposit ☐ will ☐ will not be refunded to Buyer.
- ii.** Buyer ☐ will ☐ will not list Property with a MLS. If Buyer will be listing Buyer's Property with a MLS, Buyer will do so within _____ days of Date of Acceptance.
- 7. NOTICES:**
- A.** Any notices made by Buyer under this Contingency Agreement shall be made to (check applicable box)
☐ Seller's Broker ☐ Seller ☐ Other _____
Notices shall be delivered in accordance with the Purchase Agreement.
- B.** Any notices made by Seller under this Contingency Agreement shall be made to (check applicable box)
☐ Buyer's Broker ☐ Buyer ☐ Other _____
Notices shall be delivered in accordance with the Purchase Agreement.
- C.** In the event there are multiple Buyers/Sellers on the Purchase Agreement, each Buyer/Seller shall be considered the agent of the other Buyer(s)/Seller(s) for purposes of giving and receiving notice. Written notice to ANY of said Buyers/Sellers shall be considered written notice to ALL Buyers/Sellers.
- 8. WAIVER OF CONTINGENCY:**
- A.** Buyer shall provide to Seller, at the time of waiver of this Contingency, evidence satisfactory to Seller that Buyer is financially qualified to purchase the Subject Property. Buyer's waiver of this Contingency is conditioned on Seller's approval of Buyer's financial qualifications. Seller shall inform Buyer of Seller's approval or disapproval within _____ hours after receipt of the evidence referred to above. If Seller disapproves of Buyer's financial qualifications, the Purchase Agreement will terminate and any Earnest Money will be returned to Buyer. If Seller fails to provide notice of disapproval within the time specified, Seller is deemed to have approved of Buyer's financial qualifications and waives his right to terminate the Purchase Agreement based thereon. Seller may not unreasonably withhold approval.
- B.** If Buyer elects to waive this Contingency for the sale of the Buyer's Property and is thereafter unable to close and fund on the sale of the Subject Property due to the failure to close and fund on the sale of Buyer's Property, any Earnest Money deposit will NOT be refunded to Buyer; it will be paid to the Seller. Further, Seller reserves any rights to other damages to which Seller may be entitled as a result of Buyer's financial inability to fulfill the terms and conditions of the Purchase Agreement.



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9. TIME PERIODS FOR PERFORMANCE.

- A.** If a TOM Fee is provided for in the Purchase Agreement, the TOM Fee shall be delivered the date that the Buyer delivers written notice that the Buyer's Property has gone under contract for sale or the date Buyer delivers notice that this Contingency is waived, whichever should occur first.
- B.** If Earnest Money is provided for in the Purchase Agreement, Earnest Money shall be deposited:
- ☐ as specified in the Purchase Agreement;
 - ☐ the date that the Buyer delivers written notice that the Buyer's Property has gone under contract for sale or the date Buyer delivers notice that this Contingency is waived, which ever should occur first; or
 - ☐ other _____.
- C.** Time periods in the Purchase Agreement for performance of all other obligations shall begin:
- ☐ as specified in the Purchase Agreement;
 - ☐ the date that the Buyer delivers written notice that the Buyer's Property has gone under contract for sale or the date Buyer delivers notice that this Contingency is waived, which ever should occur first; or
 - ☐ other _____.

- 10. CONFLICT.** If there is any conflict between the provisions of the Purchase Agreement and this Addendum, the provision of this Addendum will control. The remaining provision of the Purchase Agreement will remain in effect.

BUYER(S)

Buyer Signature	Print Name	Date	Time
Buyer Signature	Print Name	Date	Time

SELLER(S)

Seller Signature	Print Name	Date	Time
Seller Signature	Print Name	Date	Time



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SELLER'S NOTIFICATION TO SATISFY OR WAIVE CONTINGENCY

Buyer is hereby notified that Seller has received an acceptable offer to purchase the Subject Property from another party. UNDER THE TERMS OF THIS BUYER SALE CONTINGENCY, BUYER HAS UNTIL _____ (date) at _____ (time) ☐ am ☐ pm TO SATISFY OR WAIVE THE CONTINGENCY ("CONTINGENCY DEADLINE"). IF BUYER FAILS TO SATISFY OR WAIVE THIS CONTINGENCY WITHIN THE ABOVE PERIOD OF TIME, THE PURCHASE AGREEMENT SHALL TERMINATE, AND THE EARNEST MONEY SHALL BE DISTRIBUTED AS PROVIDED IN THIS CONTINGENCY AGREEMENT.

SELLER(S)

Seller Signature _____ Print Name _____ Date _____ Time _____

Seller Signature _____ Print Name _____ Date _____ Time _____

The undersigned hereby states that the above Notification to Satisfy or Waive Contingency was delivered to

_____ at _____

on _____, at _____ ☐ am ☐ pm

Signature

BUYER'S NOTIFICATION OF SATISFACTION OR WAIVER OF CONTINGENCY

Buyer hereby notifies Seller that he (check applicable box) ☐ WAIVES ☐ SATISFIES this Contingency. **If Buyer is WAIVING this Contingency and subsequently is unable to complete this transaction due to the failure to sell Buyer's Property, the Earnest Money deposit will NOT be refunded to Buyer; it will be paid to the Seller. Seller reserves all rights to other damages to which Seller may be entitled as a result of Buyer's financial inability to fulfill the terms and conditions of the Purchase Agreement. Additionally, if Buyer is waiving this Contingency, Seller may have the right to review and approve Buyer's financial qualifications as provided for in Paragraph 8B. See definitions of "satisfaction" and "waiver" in the introductory paragraph.**

BUYER(S)

Buyer Signature _____ Print Name _____ Date _____ Time _____

Buyer Signature _____ Print Name _____ Date _____ Time _____

ACKNOWLEDGED BY SELLER(S)

Seller Signature _____ Print Name _____ Date _____ Time _____

Seller Signature _____ Print Name _____ Date _____ Time _____



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APPROVAL OF BUYER'S FINANCIAL QUALIFICATIONS

Based on the documents provided by Buyer, Seller approves of Buyer's financial qualifications as required under Paragraph 8B. **If Buyer is unable to complete this transaction due to the failure to close and fund on the sale of Buyer's Property, the Earnest Money deposit will NOT be refunded to Buyer; it will be paid to the Seller. Seller reserves all rights to other damages to which Seller may be entitled as a result of Buyer's financial inability to fulfill the terms and conditions of the Purchase Agreement.**

SELLER(S)

_____ Seller Signature	_____ Print Name	_____ Date	_____ Time
_____ Seller Signature	_____ Print Name	_____ Date	_____ Time

ACKNOWLEDGED BY BUYER(S)

_____ Buyer Signature	_____ Date	_____ Time
_____ Buyer Signature	_____ Date	_____ Time

BUYER'S BROKER(S)

_____ Buyer's Broker Name	_____ Buyer's Broker's Qualifying Broker's Name and NMREC License No.		
_____ Buyer's Brokerage Firm	_____ Office Phone	_____ Cell Phone	_____ Email Address
_____ Buyer's Brokerage Address	_____ City	_____ State	_____ Zip Code

Broker ☐ is ☐ is not a REALTOR®

SELLER'S BROKER(S)

_____ Sellers's Broker Name	_____ Seller's Broker's Qualifying Broker's Name and NMREC License No.		
_____ Seller's Brokerage Firm	_____ Office Phone	_____ Cell Phone	_____ Email Address
_____ Seller's Brokerage Address	_____ City	_____ State	_____ Zip Code

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